

Form No: HCJD/C-121
ORDER SHEET
IN THE LAHORE HIGH COURT
RAWALPINDI BENCH, RAWALPINDI.
JUDICIAL DEPARTMENT

Intra Court Appeal No.81 Of 2020

Muhammad Sher Awan **Vs.** Government of the Punjab,
through Chief Secretary Lahore
and six others.

S.No. of order/ proceeding	Date of order/ proceeding.	Order with signatures of Judge, and that of parties or counsel, where necessary.
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17.11.2020	Mr. Muhammad Atif Farzauq Raja, Advocate for the appellant.
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This Intra Court Appeal has been filed against the order dated 02.11.2020 passed by the learned Single Judge in Chambers in the Writ Petition No.1361 of 2020, whereby the learned Single Judge in Chambers, while adjourning the hearing of the main case, recalled the order dated 02.07.2020 passed in C.M.No.02 of 2020, whereby it was directed that the impugned scheme shall not be implemented.

2. The brief facts, necessary for the disposal of the instant appeal, are that the appellant filed the Writ Petition No.1361 of 2020 whereby he challenged the scheme approved by the District Development Committee for provision of electricity to villages titled as *Dhoke Jabba(D) Thoa Mehram Khan Union Council T.M. Khan II* as according to the appellant, despite the said scheme, the appellant was being discriminated against and electricity was not being provided to him.

The Writ Petition No.1361 of 2020, came up for hearing before the learned Single Judge in Chambers on 02.07.2020 whereby the learned Single Judge in Chambers, while adjourning the hearing of the main case, passed an order in C.M. No.02 of 2020, that the impugned scheme shall not be implemented during the pendency of the main case. Thereafter, the impugned order dated 02.11.2020 was passed by the learned Single Judge in Chambers in Writ Petition No.1361 of 2020, whereby the learned Single Judge in Chambers, while adjourning the hearing of the main case, recalled the order dated 02.07.2020 passed in C.M.No.02 of 2020, whereby it was directed that the impugned scheme shall not be implemented. Being aggrieved of the order dated 02.11.2020, the appellant has filed this appeal.

3. At the outset, when confronted about the maintainability of the present Intra Court Appeal filed under section 3 of the Law Reforms Ordinance, 1972, the learned counsel contends that notwithstanding anything contained in section 3 of the Law Reforms Ordinance, 1972, an appeal is maintainable as the impugned order, dated 02.11.2020 is not an interim or interlocutory order as it has the effect of deciding the main Writ Petition No.1361 of 2020 itself .

4. We have heard the arguments of the learned counsel for the appellant at some length. It is appropriate that reference be made to the relevant provisions of law

which provide for an appeal against the judgment, order or decision passed by the Single Judge of this Court. Section 3 of the Law Reforms Ordinance, 1972 reads hereunder:-

“3. Appeal to High Court in certain cases.---

(1) An appeal shall lie to a Bench of two or more Judges of a High Court from a decree passed or final order made by a single Judge of that Court in the exercise of its original civil jurisdiction.

(2) An appeal shall also lie to a Bench of two or more Judges of a High Court from an order made by a single Judge of that Court under clause (1) of Article 199 of the Constitution of the Islamic Republic of Pakistan not being an order made under sub-paragraph (i) of paragraph (b) of that clause:

Provided that the appeal referred to in this subsection shall not be available or competent if the application brought before the High Court under, Article 199 arises out of any proceedings in which the law applicable provided for at least one appeal or one revision or one review to any Court, Tribunal or authority against the original order.

(3) No, appeal shall lie under subsection (1) or subsection (2) from an interlocutory order or an order which does not dispose of the entire case before the Court.

(4) Nothing contained in this Ordinance shall be construed as affecting:

(a) any appeal under the provisions of the Letters Patent applicable to a High Court or under section 102 of the Code of Civil Procedure, 1908 (V of 1908) which was pending immediately before the commencement of this Ordinance; or

(b) any appeal or petition for leave to appeal from a decree, judgment or order of a single

Judge of a High Court made to the Supreme Court before the commencement of the Law Reforms (Amendment) Ordinance, 1972."

5. The term "interlocutory order" does not find any specific definition attributed to it in the statutory provisions of Civil Procedure Code of 1908 or the Law Reforms Ordinance, 1972. The ordinary meaning of an interlocutory order or judgment is given in the *Concise Oxford English Dictionary* to be "(of a decree or judgment) given provisionally during the course of a legal action". In the *Black's Law Dictionary Fifth Edition*, the term "interlocutory" has been defined as "Provisional' interim; temporary; not final, something intervening between the commencement and the end of a suit which decides some point or matter, but is not a final decision of the whole controversy". Similarly, the term "interim" has been defined in the *Black's Law Dictionary Fifth Edition* as "in the meantime; meanwhile; temporary, between". In Volume-II of *Words and Phrases* by Mian Muhibullah Kakakhel, interlocutory has been defined as "An application or order or judgment which is made during the pendency of an action and has not the intention or effect of finally determining it". The term has also been interpreted by the superior Courts in a number of judgments. The august Supreme Court of Pakistan in a judgment reported as *Messrs National Security Insurance Co. Ltd.*

v. Messrs Hoechst Pakistan Ltd. and others (PLD 1990

Supreme Court 709) has observed as under:-

" In the present case too the impugned order of the High Court does not decide the matter finally and the proceedings still remain to be tried and rights in dispute between the parties have yet to be determined. According the impugned order cannot be deemed to be a final order within the meaning of Article 185(2)(e) of the Constitution, but only an order within the meaning of clause (3) of Article 185".

In a judgment delivered by a Full Bench of Lahore High Court, Lahore reported as Sultan Singh v. Murli Dhar and others (AIR 1924 Lahore 571) the term "final order" was determined in the following manner:-

"An order is a 'final order' within the meaning of section 109(a) only if it decides, or has the effect of deciding the cardinal issue in the suit an issue going to the foundation of the suit (that is and thus disposes of the rights of the parties in the litigation, it being permissible to examine not only the order, but, the circumstances of the case with a view to ascertaining the effect of the order on the suit. It is the nature of the order sought to be appealed against that determines the right to appeal a and an order is a 'final order' within the meaning of section 109(a) only if it puts an end to the litigation between the parties or dispose so substantially of the matters in issue between them as to leave merely subordinate or ancillary matters for decision."

In another judgment reported as "V.M. Abdul Rahman and others v. D.K. Cassim and Sons and others" (AIR 1933 Privy Council 58) while interpreting the provisions of section 109 of C.P.C. read with Order

XLIII Rule 23 of C.P.C., their lordships of the Privy Council observed as follows: --

"The test of finality is whether the order finally disposes of the rights of the parties where order does not finally dispose of those rights, but leaves them "to be determined by the Courts in the ordinary way" the order is not final. That the order "went to the root of the suit, namely, the jurisdiction of the Court to entertain it," is not sufficient. The finality must be of finality in relation to the suit. If, after the order, the suit is still alive suit in which the rights of the parties have still to be determined, no appeal lies against it under section 109(a)."

In a Full Bench judgment reported as "Savitri Devi v. Rajul Devi and others" (AIR 1961 Allahabad 245)

the following principle of law interpreting the term "final order" was laid down:-

"(1) That an order is final only if it finally disposes of the rights of parties; (2) That the finality of the order must be determined in relation to the suit; (3) That the order cannot be treated to be a final order if the suit is still left alive suit for the purpose of determining the rights and liabilities of the parties in the ordinary way; (4) That the, mere fact that a cardinal point in the suit has been decided or even a vital and important issue determined in the case is not enough to make the order a final one."

The test to determine the finality of an order is whether the judgment or order finally disposed of the rights of the parties. The finality must be a finality in relation to the suit. If after the order, the suit is still alive suit in which the rights of the parties have still to be

determined, no appeal lies against it. The fact that the order decides an important and even a vital issue is by itself not material. If the decision on an issue put an end to the suit, the order will undoubtedly be a final one, but if the suit is still left alive and has got to be tried in the ordinary way, no finality could attach to the order. A bare reading of subsection (3) of the section 3 of the Law Reforms Ordinance, 1972 thus clearly provides that no appeal is competent against an interim order. This legal position has further been confirmed by the august Supreme Court of Pakistan in the judgments reported as “Messrs National Security Insurance Co. Ltd. v. Messrs Hoechst Pakistan Ltd., and others” (PLD 1990 Supreme Court 709) and “Board of Intermediate and Secondary Education, Lahore through its Chairman and another v. Mst. Salma Afroze and 2 others” (PLD 1992 Supreme Court 263). Applying the abovementioned criteria and the case-law pronounced by the august Supreme Court of Pakistan, and opinion of law enunciated by the Courts in the judgments cited above, the order passed by the learned Single Judge in question is undoubtedly an interim order. In this context the wording adopted by the learned Single Judge in passing the order dated 02.11.2020 is self-sufficient and self-speaking. It is absolutely clear that the Writ Petition No.1361 of 2020 was still intended to be disposed of by the learned Single

Judge as the matter was kept alive by the learned Single Judge of this Court. Since the impugned order has not been passed by the learned Single Judge in exercise of its original civil jurisdiction under any statute or law but in exercise of jurisdiction under Article 199 of the Constitution, therefore, no appeal lies under subsections (1) and (2) of section 3 of the Law Reforms Ordinance, 1972, from an order being interlocutory and the order which does not dispose of the entire case before the Court, because the case had already been fixed before the learned Single Judge in the month of December 2020.

6. In view of all the above discussion, this Court, is of the view that the order passed by the learned Single Judge of this Court, dated 02.11.2020 in Writ Petition No.1361 of 2020 is an interim or an interlocutory order, which does not have the effect of disposing of the entire case put up before the Court, thus, the present Intra Court Appeal No.81 of 2020 against the said order is not maintainable as it is strictly barred by subsection (3) of section 3 of the Law Reforms Ordinance, 1972. The instant Intra-Court Appeal is, therefore, **dismissed**.

(RAJA SHAHID MEHMOOD ABBASI)
JUDGE

(SADIQ MAHMUD KHURRAM)
JUDGE